

THREAT ASSESSMENT FOR THE PROTECTION OF SCHOOLS

The purpose of this regulation is to establish procedures for school personnel to follow when assessing and responding to individuals who threaten violence pursuant to the requirements of the Code of Virginia § [22.1-79.4](#), School Board Policy 8290, and Loudoun County Public Schools' ("LCPS") practices and procedures.

A. Definitions. The following terms are derived from the *Comprehensive School Threat Assessment Guidelines* (Dewey Cornell, 2018). A "threat" is an expression of intent to harm someone other than oneself that may be expressed behaviorally, orally, visually, in writing, electronically, or through any other means; and is considered a threat regardless of whether it is observed by or communicated directly to the target of the threat or observed by or communicated to a third party; and regardless of whether the target of the threat is aware of the threat.

1. A "transient threat" is a threat that does not express a lasting intent to harm someone, such as figures of speech, temporary feelings, jokes, or rhetorical statements. A transient threat must end in an apology, retraction, or explanation that clearly indicates that the threat is resolved.

2. A "serious substantive threat" is a threat that expresses a continuing intent to assault someone without a weapon and without a likely outcome of significant injury that extends beyond the immediate incident.

3. A "very serious substantive threat" is a threat that expresses a continuing intent to rape, kill, or inflict severe injury requiring immediate medical treatment, or one that involves the use of a weapon.

B. Threat Assessment Teams.

1. The school threat assessment team (Level 1) will include a school administrator, defined as the principal and/or assistant principal, school psychologist, school social worker, and school counselor. The school threat assessment team will also include a school resource officer (SRO) and school security officer. Other school professionals may serve on the team as designated by the principal.

2. New threat assessment team members shall complete an initial threat assessment training at the outset of their tenure as a threat assessment team member, and all threat assessment team members shall otherwise complete a refresher threat assessment training every three years, as determined by the LCPS Office of Diagnostic & Prevention Services.

3. When a school resource officer and/or school security officer are not assigned to the school, the school administrator shall contact the Division of Safety & Security who will coordinate the appropriate personnel to provide assistance to the school team as specified in the regulation below. The school administrator is

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responsible for leading the school threat assessment team.

4. Team members shall communicate and work collaboratively with each other, with other school staff, and (as appropriate) with community resources to support the purposes of the team and the safety of the school and its students and staff.

5. The school threat assessment team:

- a. Provides guidance to students, faculty, and staff regarding recognition of threatening behavior that may represent a threat;
- b. Clearly identifies members of the school community to whom threatening behavior should be reported; and
- c. Assesses and intervenes in situations where individuals whose behavior pose (or may pose) a threat to the safety of school staff or students, including (where appropriate) making referrals to community services boards or health care providers for evaluation or treatment.

6. The school administrator and school threat assessment team document the assessment and response.

7. A division threat assessment team (Level 2) shall provide oversight, support, and guidance to school threat assessment teams as needed and when required. The purpose of the Division team is to ensure that procedures are maintained for effective information sharing between the School Division and community mental health and law enforcement agencies; assess the effectiveness of the threat assessment process throughout the School Division; and recommend changes to policies and procedures, as needed, to ensure an effective threat assessment process that reflects known best practices.

The division threat assessment team may conduct a threat assessment for those cases that impact across the School Division or where cases surpass the resources or abilities of the school threat assessment team.

The division team includes the following: Supervisor of Threat Assessment, Director of Diagnostic & Prevention Services, Director of Student Mental Health Services, Level Director, Director of Safety & Security, Director of Human Resources and Talent Development, Director of Communications and Community Engagement, Chief of Schools, and Director of School Administration.

8. The Division threat assessment team will notify and consult with Cabinet members (Level 3) to coordinate Division-level resources and supports.

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C. Identifying and Reporting Threats.

1. Anyone who believes that a person or situation poses an imminent threat of serious violence shall immediately contact 911, LCPS Division of Safety & Security, and school administration.

2. All threats to the safety of school staff or students made by any individual shall be immediately reported to the school administrator.

3. Upon notification of a threat from any individual, the school administrator will initially determine if an imminent threat of violence clearly exists that requires immediate containment and action to protect the safety of school staff and students, and if so, will immediately contact 911 and the Division of Safety & Security. Actions may include, but are not limited to, initiating a school-wide emergency response and searching students and their belongings in accordance with Policy 8265.

4. Threats that include an allegation of sex-based discrimination and sexual harassment must be reported to the Title IX Coordinator in accordance with Policy 8035.

5. Threats of self-harm are not investigated through the threat assessment process but do require compliance with Va. Code § [22.1-272.1](#) and LCPS Suicide Prevention and Risk Screening Guidelines. For any individual, when threats of self-harm are accompanied by direct or indirect threats to harm others, or investigation suggests the existence of a threat to others, the school threat assessment team shall be notified and take appropriate action to prevent acts of violence. The school threat assessment team shall work collaboratively with other entities involved in the case.

6. In accordance with Va. Code § [22.1-279.3:1](#) and LCPS Policy 8260, certain types of threats, whether transient or substantive, require immediate notification to law enforcement.

D. Assessing and Classifying Threats.

1. The school administrator shall notify, as soon as practical, the full school threat assessment team of the reported threat and an ongoing threat assessment.

2. The school administrator shall involve all members of the school threat assessment team unless it is not feasible to do so to assess, classify, and respond to the threat.

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3. In most cases, the school administrator, SRO, and at least one other team member will conduct an initial screening of the situation and reported threat to determine whether the full team or subset of the team should assess and manage the situation based on the complexity and seriousness of the case. Regardless, the full team must be notified of the threat as soon as practical.

4. The school administrator and threat assessment team shall immediately begin assessing the threat, the components of which may include, but are not necessarily limited to:

- a. Reviewing the threatening behavior or communication;
- b. Capturing evidence of the threat to the extent such evidence does not entail photographing, recording, printing, copying, or reproducing any obscene, lewd, or pornographic content. The collection of evidence may include collecting papers, seizing cell phones, taking photos of graffiti, capturing screenshots of social media postings, text streams, and emails, and preserving security camera footage;
- c. Reviewing educational records and other sources of information that include prior threat assessments, academic, discipline, special education, school-based mental health, other schools, outside agencies, law enforcement, employment, electronic/digital; and
- d. Interviewing the persons who reported or have knowledge of the threat, targets of the threat, persons who observed the threat or have knowledge of the individual or situation, and as appropriate, the individual who allegedly engaged in the threatening behavior or communication. The purpose of the interviews is to evaluate the threat in context, so that the meaning of the threat and intent can be determined.

5. The school administrator and typically one other team member will ask specific questions to obtain an accurate account of the threat but may modify and/or add questions as appropriate. The threat assessment process may be iterative, requiring review of acquired information and reinterviewing individuals to reconcile differing accounts or to evaluate new information. Members of a school threat assessment team, upon a preliminary determination that an individual poses a threat of violence to self or others, or exhibits significantly disruptive behavior or need for assistance, may obtain criminal history record information regarding adult or juvenile subjects, and obtain information from health records regarding the subject whose behavior is of concern. No member of the school threat assessment team may re-disclose any criminal history or health information obtained under this section or use it beyond the purpose for which

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the disclosure was made to the team.

6. In regard to criminal history information obtained via the Virginia State Police Central Criminal Records Exchange (CCRE) and the Juvenile Virginia Criminal Information System (JVCIN), note that any information/records printed from a terminal (having access to the system) must be destroyed after the information is obtained. The school threat assessment team may not maintain the record printed from the system access terminal, nor may they make copies of it. It is a violation of the Virginia Code (see § [18.2-152.5](#) (computer invasion of privacy) and § [18.2-152.7](#) (personal trespass by computer)) to disseminate such records/information. Criminal history information may not be placed in a student's educational file.

7. The school threat assessment team shall consult with the division threat assessment team:

- a. When assessing individuals other than students whose behavior may pose a threat to the safety of school staff and students, and
- b. As necessary, when it is determined a student has made a very serious substantive threat.

8. Upon completion of the assessment, the school threat assessment team shall convene to review all available information from the assessment and classify the threat as transient, serious substantive, or very serious substantive based on the definitions provided in Section A.

E. Responding and Managing Student Threats.

The school threat assessment team will work collaboratively to manage the threat, reduce the risk of violence, and intervene with the student who made the threat and any impacted staff or students in accessing appropriate school and community-based resources for support and/or further intervention. Threat assessment and disciplinary procedures are separate processes. Regardless of the classification of the threat, appropriate disciplinary procedures should be followed.

1. For the determination of a transient threat, no immediate protective action needs to be taken. While there is no duty to warn, the parents of the subject and the student who was the target of the threat should be notified to provide reassurances the threat has been investigated and resolved. Depending on the nature of the transient threat, the response may involve reprimand, corrective instruction, making amends or apology, and/or a referral to appropriate school or community-based resources to resolve the underlying conflict or issue. The student shall also be disciplined in accordance with applicable LCPS policies and regulations.

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2. For the determination that a threat is a serious substantive threat or a very serious substantive threat, the school administrator and school threat assessment team must take immediate protective action and implement the following safety actions to mitigate the threat and provide intervention and assistance to those involved:

- a. Warn the targets and their parents or guardians, if the target is a student, and provide the identity of student who made the threat, the seriousness of the threat, and the response of the school;
- b. Notify the parents or guardians of the student who made the threat to enlist parental support and assistance in preventing the individual from carrying out the threat and to assume responsibility for supervising the student after the student is released to them;
- c. Provide direct continuous supervision of the student who made the threat so that the student cannot carry out the threat while at school;
- d. Caution the student about the consequences of carrying out the threat;
- e. Notify the Division of Safety and Security, the school security officer and law enforcement (i.e., school resource officer) to assist in monitoring and supervising the student as well as determining the need for law enforcement action, such as investigation for evidence of planning and preparation to carry out the threat or other criminal activity;
- f. Provide interventions, as appropriate, to reduce the risk of violence and to address the underlying conflict or issues that led to the threat;
- g. Refer the student to community-based resources, as appropriate; and
- h. Discipline the student in accordance with discipline policy.

3. For the determination of a very serious substantive threat, the school administrator and school threat assessment team must take all of the safety actions set forth in Section E.2. In addition, the school administrator and school threat assessment team must take the following safety actions to reduce the risk of violence:

- a. Contact the Threat Assessment Supervisor or their designee to determine the additional safety actions.

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- b. Refer the student and family to a licensed evaluator, as determined by the Threat Assessment Supervisor and other members of the Division Level 2 threat assessment team, for the purposes of Risk of Targeted Violence evaluation based upon the student's individualized needs and the threat situation. The evaluation addresses in writing the student's mental health needs, motives and intentions for making the threat, violence risk and protective factors, and recommendations for resolving the threat and reducing the risk of violence. The evaluation will be required for the safety and well-being of the student and potential victims; and
- c. Develop a safety plan that describes the immediate and future actions to reduce the risk of violence and address the student's needs and states the conditions under which the student may return to school. The plan should be monitored and revised as needed.

F. Responding and Managing Non-Student Threats. The school threat assessment team will notify, involve, and work collaboratively with the Division threat assessment team when a threat is made by an employee, parent, former student, or unaffiliated persons. The Division team will provide oversight, support, and guidance to the school threat assessment team to manage the threat, reduce the risk of violence, evaluate the need to provide expanded school or community notification, and coordinate resources to assist individuals within the school who engaged in threatening behavior and any impacted staff or students in accessing appropriate school and community-based resources for support and/or further intervention.

1. For the determination of a transient threat, no immediate protective action needs to be taken. While there is no duty to warn, an individual who was the target of the threat should be notified to provide reassurances the threat has been investigated and resolved. Depending on the nature of the transient threat, the response will involve the following:

- a. Notify the Division of Safety and Security, the school security officer and law enforcement (i.e., school resource officer);
- b. Facilitate threat resolution through explanation, apology or making amends, as appropriate; and
- c. Notify HRTD and refer to community resources or Employee Assistance Program as needed when the threat is made by an employee.

2. For the determination that a threat is a serious substantive threat or a very

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serious substantive threat, the school administrator and school threat assessment team must take safety actions to reduce the risk, prevent violence and provide intervention and assistance to those involved:

- a. Notify the Division of Safety and Security, the school security officer, and law enforcement (i.e., school resource officer);
- b. Warn the targets of the seriousness of threat, subject's identity, and school response to threat;
- c. Notify the Supervisor of Threat Assessment or the Director of Diagnostic and Prevention Services who will notify and involve the Level 2 Division team and the Level 3 Cabinet members, as appropriate;
- d. Take protective and supportive actions for impacted staff or students through school or community resources, such as Employee Assistance Program; and
- e. Notify HRTD and refer to community resources or Employee Assistance Program as needed when the threat is made by an employee.

G. Documentation. The threat assessment must be fully documented. Confidential threat assessment records may include but are not limited to the assessment and supporting documentation and must be maintained in accordance with state law and with regulations regarding retention and disposition of such documentation so that they can efficiently and reliably report on threat assessment activities.

H. Disclaimer. This policy and regulation are intended to meet legal requirements and are not intended to create any legal liabilities or obligations to third parties.

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Leg Refs: Code of Virginia, §§ [18.2-83](#); [18.2-152.5](#); [18.2-152.7](#); [22.1-79.4](#); [22.1-272.1](#); [22.1-279.3:1](#)

Cross Refs: Policy [8260](#), Reporting of Student Conduct; Policy [8265](#), Searches Involving Students and Seizure of Contraband; Policy [8035](#), Title IX, Sex-Based Discrimination, Sexual Harassment